

14. *Capital One NA v. Magana*, Case No. CIVSB2520709

Plaintiff's Motion to Deem Requests for Admission Served on Defendant Magana as Admitted
5/13/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. The Requests for Admissions, Set One (RFA1) served on Defendant on November 20, 2025, are deemed admitted.

Here, there have been no responses provided to the RFA1 served on Defendant. (Cox Decl., ¶¶2-3, Exh. 1.) To date no responses have been provided by Defendant. (*Ibid.*)

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party." (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

15. *McRae v. Triton Global Services, Inc., et al*, Case No. CIVSB2509611

Plaintiff's Motion to Compel Production of Documents, Set One
5/13/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY** as to requests 1-3, 5, and 7-9. The Court would **GRANT** as to requests 4 and 6, only as to Plaintiff. Supplemental responses are due within 20 days.

The Court would further find substantial justification to forgo sanctions on either party.

Case Summary

This is, essentially, a workplace discrimination case with added wage-and-hour claims. Plaintiff alleges that Defendant employed him as a dispatcher. Plaintiff is a homosexual male who suffers from Attention Deficit and Hyperactivity Disorder (ADHD) and Asperger's Syndrome.

During the course of his employment, he alleges that he was subjected to discriminatory and harassing behavior directed at him on account of his disability, sexual orientation, and religious beliefs. More specifically, he alleges that Boulware would listen to sermons on the radio that would play sermons, preaching that homosexuals were possessed by demons, and that he was micromanaged and bullied. He further asserts that, after reporting the behavior, the response was ineffectual, and that he was told that he needed to stop mistreating Boulware. Further, on July 8, 2021, he was given a performance review that indicated that he was distracted – a comment he felt attacked his ADHD. Ultimately, on July 26, 2021, he was asked whether he took pictures of Boulware, which he admitted he did to validate his complaints. He was thereafter suspended indefinitely and eventually his employment was terminated on August 3, 2021, following a purported investigation.

Plaintiff filed this instant suit on April 21, 2025. On May 27, 2025, he filed this instant First Amended Complaint, alleging 24 causes of action for (1) disability discrimination; (2) disability harassment; (3) failure to accommodate; (4) failure to engage in the interactive process; (5) religious discrimination; (6) religious harassment; (7) failure to accommodate religious practice; (8) failure to engage in the interactive process to accommodate religious practice; (9) gender-based discrimination; (10) race discrimination; (11) orientation discrimination; (12) civil rights violations; (13) failure to prevent, correct, and remedy discrimination and harassment; (14) retaliation; (15) failure to conduct a proper workplace investigation; (16) failure to pay wages; (17) failure to provide meal/ rest breaks; (18) failure to provide itemized and accurate wage statements; (19) waiting time penalties; (20) failure to pay accrued vacation time; (21) violation of the unfair competition law (UCL); (22) wrongful termination; (23) intentional infliction of emotional distress; and (24) negligent infliction of emotional distress.

On November 14, 2025, the Court sustained, without leave to amend, Defendants' demurrer as to the 1-10th, 12th, 15th, and 23rd-24th causes of action. Plaintiff filed a Notice of Appeal on January 13, 2026. This motion was originally calendared for January 15, 2026, but it was continued since the matter was stayed pending appeal. An Order dismissing the Appeal was entered on March 20, 2026.

Analysis

First, as to the untimeliness objections by Plaintiff in the reply, Section 1005(b) requires an opposition to be served at least nine court days prior to the hearing. However, Plaintiff filed a reply on the merits. Timing is generally disregarded when the opponent has an opportunity to respond. (See *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 343 [“That purpose [of the timing requirement in Section 1005(b)] is served if the party appears at the hearing, opposes the motion on the merits, and was not prejudiced in preparing an opposition by the untimely notice”]; *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59 [“Although appellants objected to the untimely service, they also filed opposition papers and argued the motion on its merits. By doing so, appellants effectively waived any irregularity in the service”].)

Second, as to *amended* documents, Plaintiff is raising a new argument in his *amended* motion. As a preliminary matter, no *amended* documents were authorized or where permitted. Nonetheless, there is *no* evidence of any perjury or of Court bias presented to support the arguments in any event. Moreover, as discussed *infra*, Plaintiff is attempting to get the employee information from Defendant, and the proper method for that is by the process set forth in *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544.

Third, as to Defendant's argument that Plaintiff has failed to file any actual motion but simply filed a declaration, separate statement, and a document titled "motion" (without a notice of motion), the Court would find sufficient information to address the issues. While the Court *could* find that the criteria for motion-work under Rule 3.1113 has not been met, there is sufficient detail to show where and how discovery is purportedly lacking.

RFP1, No. 1: Troublingly, while couched as a request for production, this request seeks "[a]ll names, addresses, and phone numbers . . ." of employees. This is not a request for production, but should have been brought as an interrogatory. Furthermore, even in that light, these third-party employees have a right to privacy and are typically provided after following the *Belaire-West* procedure. The Court would deny.

RFP1, No. 2: This seeks all "Asure Time & Attendance" clock records for Plaintiff and Ms. Boulware. Preliminarily, Plaintiff's time records were produced. Thus, at issue is Ms. Boulware's time records. Ms. Boulware is *not* a party to this action. Thus, the same third-party privacy concerns relate to this request in as much. The Court would deny.

RFP1, No. 3: This seeks all "Silvertrac daily overviews" for Plaintiff, as well as third parties Barton and Boulware. Defendant asserted that it no longer uses Silvertrac but was trying to coordinate to get such documentation. Thus, Defendant instead provided the name and contact information of the "the natural person or organization known or believed by that party to have possession, custody, or control of that item." (Code Civ. Proc., § 2031.230.) This is sufficient, and therefore the Court would deny.

RFP1, No. 4: This seeks Plaintiff's pay stubs. The request as worded is not overbroad and appears reasonably particularized. However, the response to see "Exhibit B" appears inappropriate and does not reasonably identify the responsive documents. Answers must be complete and responsive. Thus, it is generally not acceptable to answer requests for production with responses such as "see my deposition" or "see financial statements." If a question does require the responding party to make reference to a pleading or document, the pleading or document should be identified and summarized so the answer is fully responsive to the question. (See Cal. Civil Discovery Practice § 8.55; 4A Moore's Federal Practice (2d ed. 1975) § 33.25[1], pp. 33-131 to 33-132.) Thus, the Court would grant.

RFP1, No. 5: This seeks harassment training certificates for the entirety of relevant staff. Defendant objects, indicating that the request is overbroad, unduly burdensome, and harassing, as there are no allegations that the entirety of staff are at issue. Thus, the request is

not reasonably calculated to lead to the discovery of relevant, admissible evidence. The request does not appear limited to Plaintiff or to the Defendant's policies in place at the time he was employed. Rather, it seeks *all* certificates for *all* employees, regardless of how removed they may be from the circumstances or facts pleaded. While training is certainly relevant, the request is not sufficiently narrowly tailored. Thus, the Court would deny.

RFP1, No. 6: This request seeks signed and dated disciplinary counseling forms related to Plaintiff. Troublingly, however, it also seeks "several examples of others written against fellow . . . employees . . ." The later request is impermissibly vague and also, again, triggers the privacy concerns related to third-party employees discussed *supra*. Nonetheless, the documents as related to Plaintiff should be produced without objection. Again, while Defendant directs Plaintiff to "Exhibit C", this sort of general directive is insufficiently detailed. The Court would grant, but as to Plaintiff's discipline only.

RFP1, No. 7: This request seeks the "name of the third-party Human Resources investigator" that was hired relevant to the case. As with request number 1, this should be couched as an interrogatory and not a request for documents. It does not seek a document, and therefore the objection that it does not seek a document that exists is appropriate. The Court would deny.

RFP1, No. 8: This seeks any "incident, police, and other reports" that involve Defendant or any of its employees from the last five years preceding the date of Plaintiff's termination of employment. Defendant objected as vague, ambiguous, unduly burdensome and intended to harass. It further asserted privacy concerns related to third-party employees. Certainly, the "all reports" sort of request is improperly overbroad. A more tailored request could be discoverable, but the current request is overbroad. The Court would deny.

RFP1, No. 9: Finally, this request seeks all "documents, footage, photographs, emails and other materials" that was sent as evidence to the Department of Fair Employment and Housing. Defendant agreed to comply. The response appears to be complete and in compliance with Section 2031.210 of the Code of Civil Procedure. Thus, the Court would deny.

15. *McRae v. Triton Global Services, Inc., et al*, Case No. CIVSB2509611
Plaintiff's Motion to Pierce the Corporate Veil
5/13/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.